

SENATE No. 286

The Commonwealth of Massachusetts

PRESENTED BY:

Michael F. Rush

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the fair distribution and pricing of event tickets.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Michael F. Rush</i>	<i>Norfolk and Suffolk</i>	
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/22/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>12/2/2025</i>

SENATE No. 286

By Mr. Rush, a petition (accompanied by bill, Senate, No. 286) of Michael F. Rush and Paul McMurtry for legislation relative to the fair distribution and pricing of event tickets. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 215 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the fair distribution and pricing of event tickets.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 185I of chapter 140 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting the following section:-

3 Section 185J. (a) The following words as used in this section, unless the context
4 otherwise requires, shall have the following meaning:—

5 “Event ticket”, a physical, electronic, or other form of a certificate, document, voucher,
6 or token to any concert, theatrical performance, sporting event, exhibition, show, or similar
7 activity taking place in the Commonwealth.

8 “Software”, any computer program primarily designed or produced for the purpose of
9 purchasing tickets from a ticket issuer for the purpose of resale on the secondary market.

“Ticket issuer”, a person or company that makes initial event tickets available directly to the general public in the primary market.

“Ticket reseller”, any form of transfer or alienation, or offering for transfer or alienation, of possession of an event ticket from one person to another, with or without consideration, whether in person or by means of telephone, mail, delivery service, facsimile, internet, email or other electronic means. “Ticket reseller” does not include the initial sale of an event ticket by the ticket issuer.

(b) No ticket issuer shall pre-sell any event ticket to a ticket reseller for the purposes of selling tickets in the secondary market.

A ticket reseller of event tickets shall be prohibited from using any software or other technology for the purpose, or with the foreseeable effect, of restricting the sale of event tickets to the general public within twenty-four hours of when the tickets go on sale.

SECTION 2. This act shall take effect upon its passage.